

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK-----X
DIANE C. DESOUSA and
THOMAS E. DESOUSA,

Index No.600371/2021

Plaintiffs,

**AFFIDAVIT OF
DIANE C. DESOUSA**

-against-

Justice Assigned:
Hon. Frank TinariRICHARD A. CALVAGNO II and
PATRICK J. KARCHER,

Motion #002

Defendants.
-----XSTATE OF NEW YORK)
)
COUNTY OF SUFFOLK)**DIANE C. DESOUSA**, being duly sworn, deposes and says:

1. I am a plaintiff in the above-entitled action and as such, am fully familiar with the facts and circumstances set forth herein. I make this affidavit in opposition to defendant Richard A. Calvagno II's ("Calvagno") motion seeking summary judgement dismissing my complaint and for counsel fees.

2. Since in or around 2020, Calvagno has remotely started, idled, and revved his high-performance Dodge Charger Hellcat for extended periods of time between 6 a.m. and 7 a.m. nearly every morning. Calvagno would then take off, recklessly speeding down the street. The sound of Calvagno's vehicle was like a rocket taking off, sending powerful reverberations throughout my home. Each time Calvagno revved his engine and took off speeding down the street, the inside of my home, including my bed, would literally shake.

3. The sounds generated by Calvagno's vehicle has adversely impacted my life. I am no longer able to sleep in as I am jolted awake when that car unnecessarily explodes each morning. I used to keep the windows in our home open as my husband and I both enjoyed the fresh air. However, I now make sure to keep our windows shut during all hours of the day to minimize the

noise and disruption as much as possible.

4. Calvagno's vehicle and driving has also caused me to completely abandon my daily walks around the neighborhood. I am gravely concerned of the danger posed by the excessive and unreasonable noise from Calvagno's vehicle and the reckless amount of speed in which he drives around the neighborhood.

5. When these issues initially started, my husband approached Calvagno and politely asked him to stop idling, revving, and racing his car down the block because of the disruptions it caused in our life and others in the community. For whatever reason, Calvagno flatly refused his request and now makes it a point to be as disruptive as possible. Specifically, Calvagno purposely positions his car with its exhaust directed towards my home, so that we feel the effects of his vehicle each morning.

6. Calvagno's parties and the use of his bulkhead space has also adversely affected the enjoyment of our home. Calvagno consistently hosts crowded and loud parties that last through all hours of the night. Many of these parties contain in excess of 50 people. My street is constantly flooded by the people attending his parties or who show up to use their boats parked in his backyard. They routinely park in front of my home and even block our driveway without any regard for us. It is frustrating and unbearable that my husband and I have been unable to get out of our own driveway on many occasions.

7. Finally, Calvagno consistently permits uncovered garbage to be left in front of his home and is engaged in an endless amount of construction at his property. After years of dirt, debris, and garbage being piled up on his property, we sustained a rat infestation at our property – something that we have never experienced prior to Calvagno moving in across the street.

8. My husband and I are not the only people in our community concerned with Calvagno's behavior. Our prior neighbors, Pat Schneider and James Veneziano, not only

complained about Calvagno's vehicle and driving, but ultimately moved because of it as well as the numerous parties Calvagno held at his home. Another neighbor, Elizabeth Ranker, also contacted the police to report Calvagno for driving recklessly around our neighborhood.

9. Due to Calvagno's daily disruptive behavior, I have suffered sleeplessness and nausea requiring me to take over-the-counter medication to treat my symptoms. My husband, however, has suffered the most from Calvagno's behavior. I believe this is due in part to the great love and responsibility he feels toward me and the adverse effects Calvagno's behavior has caused me. I have witnessed him scarily experience panic attacks, episodes of dizziness and extreme chest pains.

10. Calvagno has attempted to make this case about his sexual identity – something that has nothing to do with this case or our feelings toward him. We only wish to restore our neighborhood to the safe and peaceful place that it was previously. If Calvagno was simply neighborly and considerate, this dispute never would have reached this point and we would all likely still be on good terms. However, his aggressive and unreasonable attitude has left us with no choice but to seek redress from this Court.

11. For all the foregoing reasons, including as set forth in my attorney's annexed affirmation, I ask that this Court deny Calvagno's motion for summary judgement in its entirety.

Sworn to before me this 7th
day of June, 2024

Brenda Lombardo

Notary Public

BRENDA LOMBARDO
Notary Public, State of New York
No. 01FR0025408

Qualified in Suffolk County
Commission Expires March 28, 2026

Diane DeSousa
Diane C. DeSousa